



Appeal Decision

by Chris Mayes CMLI

an Inspector appointed by the Secretary of State

Decision date: 22nd September 2026

Appeal Ref: 6007428

Land Adjacent to Model Farm, Plex Lane, Halsall, Lancashire L39 7JY

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
 - The appeal is made by Mr Richard Holland against the decision of West Lancashire Borough Council.
 - The application reference is 2025/0998/PIP.
 - The development proposed is described as permission in principle for up to 3 no. dwellings.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. Since the appeal was submitted, a revised National Planning Policy Framework (the Framework) has been published. The parties were given the opportunity to comment on the implications of the revised Framework, and their responses have been taken into account. I have considered the appeal against the policy context now in place, including the revised Framework.
3. The proposal is for permission in principle. Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has 2 stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle and the second ('technical details consent') stage is when the detailed development proposals are assessed. This appeal relates to the first of these 2 stages.
4. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted. All other matters are considered as part of a subsequent Technical Details Consent (TDC) application if permission in principle is granted. I have determined the appeal accordingly.
5. The application form indicates that the proposal is for a minimum of 1 and a maximum of 3 dwellings. I have considered the proposal on this basis. Moreover, an indicative layout plan has been submitted. Given the nature of the planning in principle process, I have treated that plan as illustrative only.

Main Issues

6. Having regard to the above, the main issues are whether the appeal site is suitable for residential development in principle, having regard to its location, the proposed land use and the amount of development, with particular regard to:

- whether the appeal site comprises grey belt land for the purposes of the Framework;
- whether the proposed development would be suitably located having regard to the Council's spatial strategy and access to services, facilities and transport choices;
- whether or not the proposal would be inappropriate development in the Green Belt for the purposes of the Framework;
- the effect of the proposal on the openness of the Green Belt; and
- if the proposal is found to be inappropriate development in the Green Belt, whether the harm by reason of inappropriateness and any other harm would be clearly outweighed by other considerations so as to amount to the very special circumstances required to justify the development.

Reasons

Whether Grey Belt Land

7. The appeal site lies within the designated Green Belt. The Framework defines grey belt land in the Glossary as land in the Green Belt that does not strongly contribute to the purposes of Green Belt identified in Policy GB2(a), (b) or (d).
8. The site lies in the countryside, well beyond the edge of any large built-up area. Development of this relatively confined parcel would not materially affect the outward expansion of such an area. Nor is the site situated within a gap between neighbouring towns where its development would materially reduce their physical or perceived separation. Furthermore, it is not associated with the setting or special character of a historic town.
9. The Council considers that the site makes a meaningful contribution to purposes (a) and (c). However, purpose (c) does not form part of the assessment of whether land is grey belt. Moreover, the relevant question in respect of purpose (a) is whether the site makes a strong contribution to restricting the sprawl of a large built-up area. For the reasons given above, it does not.
10. Accordingly, having regard to the particular characteristics of the site and the guidance in Annex E of the Framework, I find that it does not strongly contribute to any of the purposes identified in Policy GB2(a), (b) or (d). It therefore comprises grey belt land for the purposes of the Framework.

Location

11. Although I have found that the appeal site comprises grey belt land, Policy GB7(1)(g) of the Framework requires several criteria to be satisfied before residential development may be treated as not inappropriate development in the Green Belt. Among other things, the development must be in a sustainable location.
12. The appeal site lies outside any defined settlement boundary. While that is not determinative, the settlement boundaries form part of the development plan's spatial strategy, which seeks to direct residential development towards the most sustainable locations. The site occupies a rural location along Plex Lane, a narrow

road closely bounded by hedgerows that is subject to a 60mph speed limit and used by general traffic, including agricultural vehicles. While visibility along the road is generally good and there is some street lighting in the vicinity, there is no footway adjacent to the appeal site.

13. The appellant relies on the fact that residential development has recently been permitted at Holly Farm, a short distance from the appeal site and close to the junction of Plex Lane with Southport Road. However, a key distinction is that a footway connection to Southport Road was secured as part of that development, providing direct access to the local pedestrian network, public transport connections and nearby services and facilities. No equivalent connection forms part of the appeal proposal. Consequently, while occupants of the Holly Farm development can access those opportunities directly, access to the existing pedestrian infrastructure from the appeal site depends upon walking along a section of road where no dedicated pedestrian provision exists.
14. I recognise that expectations of accessibility in rural areas differ from those in urban locations and that opportunities to maximise sustainable transport choices will vary accordingly. I also acknowledge that development of between 1 and 3 dwellings would generate a limited number of journeys. Nevertheless, that increase would be noticeable in the context of this lightly developed rural location. More importantly, the issue is whether future occupants would have realistic and safe opportunities to reach the pedestrian network, public transport and nearby services and facilities without relying principally on the private car.
15. The absence of a footway between the site and the existing pedestrian network is a significant constraint. Pedestrians would be required to walk within the carriageway of a narrow rural road used by general and agricultural traffic. The route would be particularly unattractive during darkness or poor weather, and would present greater difficulties for children, people with limited mobility and others who may be less able to respond quickly to passing vehicles. The presence of street lighting along parts of Plex Lane does not overcome the absence of dedicated pedestrian provision.
16. Although the distance involved is relatively short, the quality and safety of the route materially limit its usefulness. No evidence before me demonstrates that a continuous footway connection could be provided as part of the development. Consequently, the proposal would not provide good accessibility for different users or offer a genuine choice of transport modes. It would therefore fail to support a sustainable pattern of movement or improve walking and wheeling connectivity, contrary to the relevant principles of Policy TR3 of the Framework.
17. I have had regard to the parties' references to the Holly Farm development and the May Cottages appeal decision (appeal reference: APP/P2365/W/25/3375999, February 2026). However, a footway connection to Southport Road was considered necessary as part of the Holly Farm development, whereas no equivalent provision is proposed in this case. As for May Cottages, while the appellant seeks to distinguish that decision based on the description of its location, my findings are based on the particular characteristics of the appeal site and its surroundings as I find them. Consequently, those decisions do not lead me to a different conclusion.
18. I have also had regard to the appellant's reliance on Policy S5(1)(e) of the Framework relating to limited infilling within groups of houses. While the appeal site

lies between existing dwellings, this part of Plex Lane is characterised by a loose-knit pattern of development interspersed with open land rather than a continuous built frontage. In any event, whether the proposal could reasonably be described as infilling does not determine the sustainability of its location.

19. Taking all matters into account, I conclude that the appeal site would not represent a sustainable location for residential development in the Green Belt having regard to access to services, facilities and transport choices. Accordingly, the proposal would fail to satisfy criterion (iii) of Policy GB7(1)(g) of the Framework. For similar reasons, the proposal would also conflict with Policies GN3, IF2 and RS1 of the West Lancashire Local Plan Development Plan Document 2012-2027 (October 2013) (the LP) which seek, among other things, to secure a sustainable pattern of development, direct residential growth to appropriate locations and promote safe and attractive opportunities for travel by means other than the private motor car.

Whether or Not Inappropriate Development

20. I have found that the appeal site comprises grey belt land. Given the site's limited extent and its relationship with the wider Green Belt, its development for between 1 and 3 dwellings would not fundamentally undermine the purposes of the remaining Green Belt across the area of the plan. Furthermore, the Council's inability to demonstrate a five-year supply of deliverable housing sites provides evidence of an unmet need for housing. As the proposal would not constitute major development, the requirement to comply with Policy GB8 is not engaged.
21. However, Policy GB7(1)(g) requires each of its applicable criteria to be satisfied. For the reasons given above, the development would not be in a sustainable location, with particular reference to Policy TR3 of the Framework. It therefore fails criterion (iii) and cannot be treated as not inappropriate development under Policy GB7(1)(g). Accordingly, the proposal would constitute inappropriate development in the Green Belt, which is by definition harmful, and substantial weight attaches to that harm.

Openness

22. This part of Plex Lane comprises a small cluster of sporadic development set within an otherwise open landscape of fields. The buildings are interspersed with undeveloped land, and the appeal site contributes to the loose-knit relationship between them and to the perception of the wider countryside. It is therefore the existing buildings that appear as dispersed elements within an open landscape, rather than the site appearing simply as a gap in an established built frontage.
23. The introduction of between 1 and 3 dwellings, together with their domestic curtilages and associated activity, would replace undeveloped land with permanent built form. Although the development would be seen in the context of nearby buildings and need not project beyond their general building line, it would reduce the amount of open land and close an existing visual connection with the countryside. It would also consolidate development along this section of Plex Lane, weakening its present loose-knit character.
24. Consequently, I conclude that the proposal would cause both spatial and visual harm to the openness of the Green Belt. Although localised, that harm would be additional to the definitional harm arising from inappropriate development in the Green Belt.

Other Considerations and Green Belt Balance

25. The Council is unable to demonstrate a five-year supply of deliverable housing sites. The provision of between 1 and 3 dwellings would contribute towards addressing that shortfall and would attract social and economic benefits through housing delivery, construction activity and future household expenditure. The proposal would also make use of land situated between existing development. However, there is no certainty at this stage that the maximum of 3 dwellings would be delivered and, even if it were, the contribution would be modest in numerical terms. Taken together, I attach moderate weight to these benefits.
26. The proposal would constitute inappropriate development in the Green Belt, to which substantial weight must be given. It would also cause spatial and visual harm to openness, albeit that this harm would be localised. In addition, the site would not provide future occupants with realistic and safe opportunities to access the pedestrian network, public transport and nearby services and facilities without relying principally on the private car.
27. Against those harms, the proposal would contribute between 1 and 3 dwellings towards the Council's housing supply and would generate associated social and economic benefits. Taken together, I attach moderate weight to those considerations. However, they do not clearly outweigh the harm by reason of inappropriateness, the harm to openness and the other harm identified. Consequently, the very special circumstances necessary to justify the development do not exist.
28. I have taken into account the Council's housing land supply position and the benefit arising from the proposal's contribution to meeting the identified shortfall. However, as the proposal would be inappropriate development under Policy GB7, the further balance applicable to development that is not inappropriate under Policy S5(5) is not engaged.
29. The proposal would conflict with Policies GN3, IF2 and RS1 of the LP insofar as they seek to secure a sustainable pattern of development and provide realistic opportunities for travel other than by private car. It would also conflict with the development plan's approach to development in the Green Belt. These conflicts are sufficient for me to find that the proposal conflicts with the development plan when read as a whole.

Conclusion

30. Having regard to the location of the site, its proposed residential use and the amount of development proposed, I conclude that the site is not suitable for the grant of permission in principle. The proposal would conflict with the development plan when read as a whole, and the material considerations, including the Framework, do not indicate that the appeal should be determined otherwise than in accordance with it. The appeal should therefore be dismissed.

Chris Mayes

INSPECTOR